

**SUBSTITUTE FOR
HOUSE BILL NO. 5944**

A bill to amend 1939 PA 280, entitled
"The social welfare act,"
(MCL 400.1 to 400.119b) by adding section 109y.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 109y. (1) The department shall provide coverage under the**
2 **medical assistance program to an eligible individual for behavioral**
3 **health transport.**

4 **(2) The department shall require a behavioral health transport**
5 **agency to comply with section 987 of the mental health code, 1974**
6 **PA 258, MCL 330.1987. The department shall reimburse a behavioral**
7 **health transport agency for providing behavioral transport to an**
8 **eligible individual only if the behavioral health transport is**
9 **ordered or certified by a licensed provider.**



1 (3) As used in this section:

2 (a) "Behavioral health transport" means that term as defined
3 in section 981 of the mental health code, 1974 PA 258, MCL
4 330.1981.

5 (b) "Behavioral health transport agency" means the owner or
6 operator of a behavioral health transport.

7 (c) "Eligible individual" means that term as defined in
8 section 981 of the mental health code, 1974 PA 258, MCL 330.1981.

9 Enacting section 1. This amendatory act does not take effect
10 unless Senate Bill No. 928 or House Bill No. 5943 of the 103rd
11 Legislature is enacted into law.